

Harassment, Bullying, Violence in the Workplace Policy

We prohibit harassment of one employee by another employee, supervisor or third party for any reason based on a protected class including but not limited to: veteran status, uniform member status, race, color, religion, sex, national origin, sexual orientation, physical or mental disability genetic information or any other protected class under federal, state or local law, *as well as* gender identity, parental status, marital status, political affiliation, gender expression, mental illness, socioeconomic status or background, neuro(a)typicality, physical appearance, body size, or clothing. Harassment of third parties by our employees is also prohibited.

The following are considered a protected class: race; religious creed; color; national origin; ancestry; physical disability; mental disability; medical condition, including genetic characteristics; marital status; sex; pregnancy, childbirth or related medical conditions; actual or perceived gender; gender identity; sexual orientation; civil air patrol membership; service in the military forces and age (40 or over). Included in the definition of each protected category is the perception of membership in a protected category and an individual's association with an actual or perceived member of a protected category.

The purpose of this policy is to ensure that all employees shall be free from harassment of any kind. The conduct prohibited by this policy includes conduct in any form including but not limited to e-mail, voice mail, chat rooms, social networking, internet use or history, text messages, pictures, images, writings, words or gestures.

While it is not easy to define precisely what harassment is, it includes: slurs, epithets, threats, derogatory comments or visual depictions, unwelcome jokes, and teasing.

For authoritative guidance on legally prohibited harassment and boundaries, please consult the U.S. Equal Employment Opportunity Commission.

In addition to prohibiting harassment in these forms, we also consider the following unacceptable:

- Making negative or offensive remarks, regardless of to whom they are directed, based on:
 - gender expression,
 - mental illness,
 - socioeconomic status or background,
 - neuro(a)typicality,
 - physical appearance,
 - body size, or
 - clothing.
- Touching people without their affirmative consent.
- Repeatedly and unnecessarily disrupting formal or informal gatherings or meetings, whether in person or within a chatroom setting.
- Retaliating against anyone who files a complaint that someone has violated the provisions of this manual.

- Intentionally or repeatedly referring to people in a way that rejects the validity of their gender identity; for instance, by knowing and intentional use of incorrect pronouns or forms of address.
- Engaging in behaviors that marginalize people or communicate hostile, derogatory, or negative beliefs. Examples include:
 - Patronizing or belittling a person or group,
 - Repeatedly interrupting or talking over someone else,
 - Pedantic corrections that don't add value,
 - Expressing an assumption that persons or groups need concepts defined or explained to them without first asking if they do,
 - Using unsubstantiated language that creates or furthers a belief which diminishes the value or contributions of a person or group,
 - Employing racially or ethnically charged language to describe a person or thing,
 - Referring to an individual in a way that demeans or challenges the validity of any aspect of their personal identity, or
 - Mocking someone's real or perceived accent or first language.

In sum, we always seek to maintain a professional, healthy and supportive environment for every employee. **The guiding principle of The OpenGov Foundation is to be excellent to one another.**